

Another case suggested that “undue burden” be measured by weighing the cost, time, expense and disruption of normal business if responses were required against the probative value that might be realized from that discovery:

Because of the potential for promiscuous discovery imposing great burdens, even though ultimately the probative value of the discovered material may be questionable, trial judges must carefully weigh the cost, time, expense and disruption of normal business resulting from an order compelling the discovery against the probative value of the material which might be disclosed if the discovery is ordered. Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 223.

Defendants have in opposition produced a declaration by an executive vice president of Defendant WINNRESIDENTIAL CALIFORNIA L.P. While this declaration asserted the inability of this defendant to access records for about 65 of the over 250 different properties in California it had managed, and the need to review an estimated 13,000 files in locations throughout the state for all of the thousands in damages charges (for the other 185+ properties to which it still has access to those records), it failed to quantify what time and expense compliance would cost, nor to explain what if any steps were taken to make reasonable and good faith effort to access records and/or information not in its immediate possession (nor was any evidence at all provided for Defendant LLAM REALTY MANAGEMENT, INC.).

Under these circumstances, and with the subject discovery having been initially propounded back in August 2025, the court concludes that further responses/compliance will be required as soon as reasonably possible. Counsel are to appear for hearing to discuss the logistics and timetable for Defendants providing *Belaire-West* notice, and ultimate production to Plaintiff of the contact information, for the former renters whose contact information was sought in the subject special interrogatory and who do not timely opt out of the release of that information, to the extent such information is reasonably available to Defendants, after a reasonable and good faith effort to obtain the information, per the obligations imposed by C.C.P. §2030.220.

KRISTALYN GORDON; ET AL. vs. LISA KUSA DI GIACOMO; ET AL.
Case No. CU25-06969

Defendants STITCH IN TIME ANIMAL RESCUE (“STAR”) and LENNOX WELSH’s
Motion for Good Faith Settlement

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. The Parties should be prepared to address:

- (1) Due process concerns for any defendant that has not yet been served with the summons and complaint and their opportunity to object to any settlement.
 - (2) Discussion of Defendant Stitch in Time's citations at page 8:18-21 and how they provide authority for the position that the "[...] statute only requires notice to parties who have appeared[...]."
 - (3) Discussion of *Singer Co. v Superior Court* (1986) 179 Cal.App.3d 875.
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THOMAS SILIGO vs. NORTHBAY HEALTHCARE CORPORATION
Case No. CU26-03409

Plaintiff's Motion to be Relieved as Counsel

TENTATIVE RULING

THE PARTIES ARE TO APPEAR.

At the hearing, the Court's tentative ruling is as follows:

Plaintiff Counsel's unopposed motion to withdraw is GRANTED.

PANKAJ SHARMA; ET AL. vs. PAUL SUNAK; ET AL
Case No. FCS055977

- 1). Motion to Compel Further Responses to Discovery
- 2). Motion for Sanctions

TENTATIVE RULING

Motion to Compel Further Responses

Plaintiffs' motion to compel further responses to their first sets of form and special interrogatories, requests for production of documents, and requests for admission is denied without prejudice.

Plaintiffs' meet and confer declaration does not "state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented" (Code Civ. Proc. § 2016.040) and fails to establish that counsel engaged in a "serious effort at negotiation and informal resolution" that amounted to a sufficient "attempt to talk the matter over, compare their views, consult, and deliberate." (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294; *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) The declaration establishes only that Attorney Roundy did not immediately respond to Plaintiffs' counsel's attempts to meet and confer. (Decl. of Benjamin, ¶ 4.)